



CHAPTER lxxi.

An Act to confirm a Provisional Order under the Private Legislation Procedure (Scotland) Act 1899 relating to Colinton Tramways Extension. A.D. 1914.
[8th July 1914.]

WHEREAS His Majesty's Secretary for Scotland has made the Provisional Order set forth in the schedule hereunto annexed under the provisions of the Private Legislation Procedure (Scotland) Act 1899 and it is requisite that the said Order should be confirmed by Parliament: 62 & 63 Vict.
c. 47.

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The Provisional Order contained in the schedule hereunto annexed shall be and the same is hereby confirmed. Confirmation
of Order in
schedule.

2. This Act may be cited as the Colinton Tramways Extension Order Confirmation Act 1914. Short title.

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Confirmation Act, 1914.

A.D. 1914.

SCHEDULE.

Provisional Order to extend the time for the construction of the tramways and works authorised by the Colinton Tramways Order 1909 and for other purposes.

WHEREAS the Colinton Tramways Company (hereinafter called "the Company") was incorporated by the Colinton Tramways Order 1909 (hereinafter referred to as "the Order of 1909") and was thereby authorised to construct the tramways in the county of Midlothian and the county of the city of Edinburgh in that Order described :

And whereas the Order of 1909 confirmed and made binding on the Company an agreement dated 24th July 1909 entered into between Colin George Macrae Knight and the other persons therein named and designed of the one part and His Majesty's Principal Secretary of State for War of the other part :

And whereas it is expedient that the provisions of the said agreement scheduled to the Order of 1909 with respect to the use by the contractor or other person employed in the construction of the barracks therein mentioned (being the cavalry barracks at Redford now approaching completion) of the track of the tramways therein specified should be extended to the use of said track by the contractor or other person employed in the construction of the infantry barracks about to be erected at Redford and that extension of time for the completion of the works authorised by the Order of 1909 and certain other consequential powers should be granted to the Company in manner hereinafter mentioned :

And whereas it is expedient that the Company be empowered to sell and that the lord provost magistrates and council of the city of Edinburgh be empowered to purchase the undertaking of the Company as hereinafter provided and that the provisions of the Tramways Act 1870 as to the purchase of the undertaking of the Company be modified as hereinafter mentioned :

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And whereas the purposes aforesaid cannot be effected without an Order of the Secretary for Scotland confirmed by Parliament under the provisions of the Private Legislation Procedure (Scotland) Act 1899: A.D. 1914.

Now therefore in pursuance of the powers contained in the last-mentioned Act the Secretary for Scotland orders as follows:—

1. This Order may be cited as the Colinton Tramways (Extension) Order 1913. Short title.

2. In this Order the several words and expressions to which meanings are assigned by the Order of 1909 have the same respective meanings unless there be something in the subject or context repugnant to such construction And in this Order unless the context otherwise requires— Interpre-
tation.

“The Company” means the Colinton Tramways Company;

“The undertaking” means the undertaking of the Company as authorised by the Order of 1909 and this Order;

“The corporation” means the lord provost magistrates and council of the city of Edinburgh.

3. The powers granted by the Order of 1909 for the construction of the tramways and works by that Order authorised are hereby extended and may be exercised by the Company for a period of three years from 25th November 1914 and sections 19 (Period for completion of tramways) 103 (Tramways deposit fund not to be repaid except so far as tramways are opened) and 104 (Application of tramways deposit fund) shall be read and construed as if the period by this Order limited for the completion of the said tramways and works had been the period limited by the Order of 1909 for the completion thereof If the said tramways and works are not completed before the expiry of the said period of three years from 25th November 1914 then on the expiration of that period the powers for making and completing the same or otherwise in relation thereto shall cease except as to so much thereof as shall then be completed. Extension of
time for com-
pletion of
authorised
tramways.

4. Notwithstanding anything contained in the agreement scheduled to and confirmed by the Order of 1909 the Company may consent to the track or any part of the track of the Amendment
of agreement
with Secre-
tary of State
for War.

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A.D. 1914. — tramways in that agreement mentioned being used or continued to be used by His Majesty's Secretary of State for War or any contractors or other persons employed by him in the work of constructing barracks at Redford during any period not exceeding six years and three months from the commencement of the Order of 1909 for the purpose of conveying materials persons and things to and from the site or sites of the said barracks and for all other purposes connected with the erection of the said barracks or any of them and the said Secretary of State or such contractors or other persons employed as aforesaid shall be entitled to use or continue to use during the period foresaid the said track or any part thereof for all or any of the said purposes and that on such terms as may be arranged between the Company and the said Secretary of State or failing arrangement as may be fixed by an arbiter appointed by the Secretary for Scotland Provided that except in so far as hereby altered the said agreement shall remain in full force and effect.

Amendment
of provisions
for protec-
tion of trus-
tees of Craig-
lockhart
Estate Com-
pany.

5. Section 48 (For protection of trustees of Craiglockhart Estate Company) of the Order of 1909 shall be read and construed as if the word "six" had been substituted for the word "four" in subsections three ten and twelve and as if the word "eight" had been substituted for the word "five" in subsection three thereof.

For protec-
tion of trus-
tees of Craig-
lockhart
Estate Com-
pany.

6. For the protection of John More Dick Peddie architect Wellwood Maxwell of Kirkennan Dalbeattie and William Robert Reid of Lauriston Castle Davidson's Mains trustees of the Craiglockhart Estate Company and the said Craiglockhart Estate Company and partners thereof (in this section called "the Craiglockhart Estate Company") and notwithstanding anything contained in section 48 of the Order of 1909 or in this Order the following provisions shall unless otherwise agreed between the Company and the Craiglockhart Estate Company have effect (that is to say):—

- (1) The Company on or before the 25th day of November 1917 shall expend upon the road called in the said section 48 of the Order of 1909 "the eastern portion of the road" such sum not exceeding 2,500*l.* sterling in all as shall be necessary to form (in so far as not already done) make up construct and complete the said eastern portion of the road in terms of the said section and in respect of the

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said obligation the Company and their sureties shall be discharged from payment of the penalty provided in subsection three of the said section to be paid by the Company to the Craiglockhart Estate Company in case of failure to complete the said eastern portion of the road within the period specified in the said subsection: A.D. 1914.

- (2) The Company may continue to use or grant the use of the ground to be occupied by that portion of Tramway No. 1 authorised by the Order of 1909 which lies between its junction with Tramway No. 3 authorised by the Order of 1909 and the western boundary of the Craiglockhart Estate Company's lands for the purpose of temporary railways or tramways for the conveyance of building or other materials but this right shall be exercised in such a manner as to cause as little damage as possible to the estate of Craiglockhart and shall cease on the 25th day of February 1917 And so long as the said right shall have been or shall be exercised the Company shall repay to the Craiglockhart Estate Company the abatement of rent being at the rate 13*l.* 16*s.* 9*d.* per annum allowed by the Craiglockhart Estate Company to their agricultural tenants in respect of the tenants' exclusion from the said ground.

7. Nothing contained in this Order shall authorise or empower the Company His Majesty's Secretary of State for War or any contractors or other persons to use or permit to be used the track of the tramways mentioned in the agreement scheduled to and confirmed by the Order of 1909 in so far as said track is or may be laid upon land belonging to the corporation otherwise than in accordance with terms arranged or to be arranged with the corporation unless or until such land be taken or purchased from the corporation. For protection of corporation of Edinburgh.

8. Section 49 (For protection of Honourable Arthur Ralph Douglas Elliot and another) of the Order of 1909 shall be read and construed as if the word "eight" had been substituted for the word "five" in subsection two and as if the word "six" had been substituted for the word "four" in subsections six and ten thereof. Amendment of provisions for protection of Hon. Arthur Ralph Douglas Elliot and another.

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Power to
apply exist-
ing funds.

9. The Company may from time to time apply towards all or any of the purposes of this Order and for the general purposes of their undertaking to which capital is properly applicable any moneys which they have raised or may hereafter raise under the Order of 1909.

As to pur-
chase of
undertaking.

10. Notwithstanding anything contained in section 110 of the Order of 1909 or in section 44 of the Tramways Act 1870 but subject to the provisions of section 43 of the said Tramways Act so far as these are not inconsistent with the provisions of this section the Company may at any time sell to the corporation and the corporation may with the approval of the Board of Trade purchase from the Company on terms to be arranged the undertaking of the Company including all tramways lands buildings works material plant moneys and property forming part of or held in connection with said undertaking and all powers rights privileges and authorities conferred on the Company by the Order of 1909 or this Order and subject to any obligations incumbent on the Company under said Orders or either of them The Company and the corporation may take all such steps and do all such things as may be necessary or convenient for completing such sale but subject always to the following provisions (that is to say):—

- (1) The corporation shall not purchase the undertaking of the Company or any part thereof under the provisions of this section unless they shall decide to make such purchase by resolution passed at a special meeting of the members constituting the corporation and no such resolution shall be valid unless a month's previous notice of the meeting and of the purpose thereof has been given in the manner in which notices of meetings of the corporation are usually given nor unless two-thirds of the members constituting the corporation are present and vote at the meeting and a majority of those present and voting concur in the resolution and it shall be lawful for the chairman of any such meeting with the consent of a majority of the members present to adjourn the same from time to time and the corporation may pay the purchase money and all expenses incurred by them in the purchase of the undertaking under the authority of this section out of the like

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rate and shall have the like powers to borrow on the security of the same as if such expenses were incurred in applying for obtaining and carrying into effect any Provisional Order obtained by them under the Tramways Act 1870:

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- (2) The provisions of the Tramways Act 1870 with respect to the purchase of the undertaking by a local authority shall from the date of any purchase by the corporation under the authority of this section apply and be exerciseable by the county council of the county of Midlothian in respect of any portion of the undertaking situate within the district of which they are local authority except that the period of forty years shall be deemed to be substituted for the period of twenty-one years in section 43 of that Act mentioned:
- (3) When any such sale shall have been made all the rights powers and authorities of the Company in respect of the undertaking so purchased shall be transferred to vested in and may be exercised by the corporation or local authority as the case may be in like manner as if such tramways were constructed by the corporation or local authority as the case may be under powers conferred upon the corporation or local authority as the case may be by a Provisional Order under the Tramways Act 1870 together with power to place and run carriages upon and to work such tramways and to demand and take tolls rates and charges in respect of the same or in respect of the use of such carriages and in reference to such tramways the corporation or local authority shall be deemed to be the Company.

11. All costs charges and expenses of and incident to the preparing for obtaining and passing of this Order and the confirming Act or otherwise in relation thereto shall be paid by the Company.

Costs of
Order.

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